

Ku. Tamanna vs Krishna on 28 March, 2024

Author: Parth Prateem Sahu

Bench: Parth Prateem Sahu

Neutral Citation
2024:CGHC:11238

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HIGH COURT OF CHHAT TISGARH, BILASPUR
CRR No. 238 of 2016

Reserved on : 07.03.2024

Delivered on : 28.03.2024

1. Ku. Tamanna D/o Krishna Gond, aged about 2 $\frac{1}{2}$ months, Minor through Natural Guardian Mother namely Dineshwari W/o Krishan Gond R/o Lokhan, P.S. Kukdur, Tahsil Pandariya, Civil and Revenue District Kabirdham, C.G.
2. Dineshwari Bai W/o Krishan Gond, aged about 26 years, Occupation- not known, R/o Lokhan, police station Kukdur, Tahsil Pandariya, Civil and Revenue District-Kabirdham, C.G.

-----Applicants

VERSUS

- Krishna S/o Jai Singh Gond, aged about 35 years, Occupation- Agriculturist and Rajmistri, R/o Kukdur, Police Station- Kukdur, Tahsil Pandariya, District Kabirdham, C.G.

-----Non-applicant

For Applicant	: Dr. Arpit Lall, Advocate on behalf of Mr. Dharmesh Shrivastava, Advocate.
For Non-applicant	: None.

Hon'ble Shri Parth Prateem Sahu, Judge
C.A.V. ORDER

1. This revision is filed against the order dated 15.10.2015 challenging the order passed by learned Family Court, Kabirdham in Miscellaneous Criminal Case No. 337/2014, whereby learned Family Court allowed the application filed under Section 125 of CrPC by the applicants, in part

while allowing it with respect to applicant No. 1 (child) and awarding 1500/- per month as maintenance and rejected the maintenance claim of applicant no. 2 observing that applicant No. 2 is not legally wedded wife of respondent.

2. Learned counsel for applicants submits that applicant no. 2 and the respondent lived as husband and wife and after some time respondent ousted the applicant no. 2 from his house and from their relationship applicant no. 1 was born. As the applicant no. 2 and respondent resided together as husband and wife, the status of applicant no. 2 was Neutral Citation 2024:CGHC:11238 wife of respondent. Learned Family Court considering that no order of divorce is passed in favour of applicant no. 2 from her earlier husband has rejected her claim observing that applicant no. 2 is not a legally wedded wife of respondent. He also contended that the amount of maintenance awarded to applicant no. 1 is also very meagre. Learned Family Court has not taken note of the fact of age of applicant No. 1 on the date of filing of application to be 2 ½ months and in such a tender age more expenditure is required for taking care of the newly born child towards medical as also towards special diet and therefore while setting aside the order passed by learned Family Court the amount of maintenance awarded in favour of applicant no. 1 be enhanced and amount of maintenance to applicant no. 2 be also awarded.

3. No one appeared on behalf of respondent. On the last date of hearing ie. 23.02.2024 as also on 12.05.2016 also there was no appearance on behalf of respondent.

4. I have heard learned counsel for the applicants and also perused the record.

5. To appreciate the submission of learned counsel for applicants with respect to claim of applicant no. 2, I have perused the record. Perusal of application filed under Section 125 of CrPC would show that the applicant in the application has pleaded that when applicant no. 2 was going along with respondent on a motorcycle, suddenly respondent stopped the motorcycle, caught her hand, forcefully taken under the bridge and committed forceful sexual intercourse with her. Thereafter performed marriage with her in a temple and accepting her to be his wife. Since then continuously established physical relationship with her due to which she became pregnant and gave birth to applicant No. 1. In evidence before the Family Court in the affidavit filed under Order 18 Rule 4 CPC, similar statement is pleaded. However, in cross- examination, applicant No. 2 stated that when she was being taken down the bridge she has not screamed, however later on she stated Neutral Citation 2024:CGHC:11238 that she screamed and shouted however there was no one present to come to rescue her. She further stated that after committing sexual intercourse with her, they have not performed marriage and they return back to their home. It is also stated that thereafter respondent continuously used to visit her house and established physical relation with her.

6. From the aforementioned statement of applicant no. 2 in her cross- examination, it appears that there is contradiction in the pleadings, facts pleaded as also her evidence before the Court. In further cross- examination, the victim stated that when she was carrying pregnancy of four months,

respondent took her along with him to Kukdur where she resided for two months and returned back. This fact is not pleaded in the application under Section 125 of CrPC seeking maintenance. In cross-examination, applicant No. 2 has further stated that she was earlier married to one Jagjivan who was paying maintenance amount as Rs. 2000/- per month. Jagjivan stopped paying the amount of maintenance since last about a year. There is further statement that the marriage was dissolved by a customary divorce ie. "chhor-chhutti"

with her earlier husband and she submitted documents in this regard.

However, she stated that the proceedings for taking customary divorce by her earlier husband was not filed.

7. From the aforementioned facts of the case, it is apparent that applicant No. 2 was earlier married lady. There is allegation of forceful sexual intercourse with respondent. Physical relation between the two was under the bridge and thereafter in the house of respondent, as per the pleadings. There is no evidence of the fact that applicant no. 2 and respondent further resided as husband and wife under one roof. Learned Family Court taking note of the decision in the cases of Smt. Yamunabai Anantrao Adhav vs. Anatraon Shivaram Adhav [AIR 1988 SC 644], Savitaben Somabhat Bhatiya vs. State of Gujarat [AIR 2005 SC 1809] and Hemlata Karayat vs. Vijay Kumar Karayat Neutral Citation 2024:CGHC:11238 [II (2015) DMC (Chha.)] has rejected the claim sofar as relates to claim of maintenance of applicant No. 2.

8. At this juncture, the relevant part of Section 125 of CrPC is also worth referring, which is extracted below:

"125. Order for maintenance of wives, children and parents.

(1) If any person having sufficient means neglects or refuses to maintain--

(a) his wife, unable to maintain herself, or

(b) his legitimate or illegitimate minor child, whether married or not, unable to maintain itself, or

(c) his legitimate or illegitimate child (not being a married daughter) who has attained majority, where such child is, by reason of any physical or mental abnormality or injury unable to maintain itself, or

(d) his father or mother, unable to maintain himself or herself.

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Explanation.--For the purposes of this Chapter,

(a) * * * *

(b) "wife" includes a woman who has been divorced by, or has obtained a divorce from, her husband and has not remarried.

(2) * * * *

(3) * * * *

(4) No wife shall be entitled to receive an 5[allowance for the maintenance or the interim maintenance and expenses of proceeding, as the case may be,] from her husband under this section if she is living in adultery, or if, without any sufficient reason, she refuses to live with her husband, or if they are living separately by mutual consent."

9. From the aforesaid provision it is clear that an illegitimate child is entitled to get maintenance but an illegitimate wife is not entitled to get maintenance. The intention of legislature is obvious that maintenance can only be granted in favour of legally wedded wife. Now, the question is required to be answered as to whether applicant No. 2 can be termed as wife of respondent.

10. The learned counsel for applicants has submitted that applicant No. 2 and respondent have resided together as husband and wife and the Neutral Citation 2024:CGHC:11238 status of applicant No. 2 was wife of respondent. And after some time respondent ousted her from his house. Learned Family Court considering that no order of divorce is passed in favour of applicant no. 2 from her earlier husband has rejected her claim observing that applicant no. 2 is not a legally wedded wife of respondent. On this aspect, the relevant part of Sections 5 and 11 of the Hindu Marriage Act is relevant to reproduce here:

"Section 5: Conditions for a Hindu marriage.

A marriage may be solemnized between any two Hindus, if the following conditions are fulfilled, namely:

(i) neither party has a spouse living at the time of the marriage;

(ii) at the time of the marriage, neither party

(a) is incapable of giving a valid consent to it in consequence of unsoundness of mind; or

(b) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or to such an extent as to be unfit for marriage and the procreation of children; or

(c) has been subject to recurrent attacks of insanity;

(iii) the bridegroom has completed the age of 3[twenty-one years] and the bride, the age of 4[eighteen years] at the time of the marriage;

(iv) the parties are not within the degrees of prohibited relationship unless the custom or usage governing each of them permits of a marriage between the two;

(v) the parties are not sapindas of each other, unless the custom or usage governing each of them permits of a marriage between the two;

Section 11: Void Marriages.-

Any marriage solemnised after the commencement of this Act shall be null and void and may, on a petition presented by either party thereto 1[against the other party], be so declared by a decree of nullity if it contravenes any one of the conditions specified in clauses (i), (iv) and (v) of section 5."

11. Having considered the aforesaid provisions, it is clear that from the condition mentioned in sub-section (I) of Section 5 and from Section 11, the marriage of applicant No. 2 with respondent cannot be substantiated. Clause (1)(i) of Section 5 lays down, for a lawful marriage, the necessary condition that neither party should have a Neutral Citation 2024:CGHC:11238 spouse living at the time of the marriage. A marriage in contravention of this condition, therefore, is null and void.

12. Now turning to the pleading regarding divorce from her earlier husband of applicant No. 2, though in evidence before the Family Court in the affidavit filed under Order 18 Rule 4 CPC, pleadings have been made with regard to forcefully taking the applicant No. 2 under the bridge and committing forceful sexual intercourse with her. Thereafter performing marriage in a temple and accepting her to be his wife. Since then continuously established physical relationship with her due to which she became pregnant and gave birth to applicant No. 1. However, from the cross-examination of applicant No. 2, it appears that there are contradictions in the pleadings made in the application filed under Section 125 of CrPC and in the cross-examination. There is further statement that she took customary divorce with her earlier husband and she submitted documents in this regard. However, she stated that the proceedings for taking customary divorce was not filed by her earlier husband. And no documents so as to show the divorce/ customary divorce ie. "chhor-chhutti" with her earlier husband have been brought on record. In any event, there is nothing to show that this divorce was a divorce which could be legally granted under the law. Therefore, I shall proceed on the assumption that there was no valid divorce between the applicant No. 2/ Dineshwari Bai and her first husband-Jagjivan.

13. On this issue the law laid down by the Hon'ble Supreme Court in the case of Savitaben Somabhai Bhatiya (supra) is as under:

"8. There may be substance in the plea of learned counsel for the appellant that law operates harshly against the woman who unwittingly gets into relationship with a married man and Section 125 of the Code does not give protection to such woman. This may be an inadequacy in law, which only the legislature can undo. But as the

position in law stands presently there is no escape from the conclusion that the expression "wife" as per Section 125 of the Code refers to only legally married wife.

9. The provision is enacted for social justice and specially Neutral Citation 2024:CGHC:11238 to protect women and children as also old and infirm poor parents and falls within the constitutional sweep of Article 15(3) reinforced by Article 39 of the Constitution. The provision gives effect to the natural and fundamental duty of a man to maintain his wife, children and parents so long as they are unable to maintain themselves. ..."

14. In view of the aforesaid settled propositions and provisions of law it is crystal clear that the wife should be a "legally wedded wife" for claiming maintenance from her husband. A woman, having solemnized second marriage to another person, is only entitled to get maintenance from that person, when the first marriage has been declared either null and void or she has obtained a divorce decree from her first husband. Considering such facts and evidence, learned Family Court has passed the order on the ground that since the applicant No. 2 is not a legally wedded wife of respondent, therefore, she is not entitled for the claim of maintenance.

15. So far as the enhancement in maintenance amount of applicant No. 1/ Ku. Tamanna from 1500/- to 2000/- is concerned, after going through the record, it revealed that in the main application for maintenance filed by applicants before the learned Family Court, 2000/- has been demanded for her maintenance. Be that as it may, looking to the date of passing of award in the year 2015, age of applicant No. 1 was 2 ½ months and on the date of passing of order she was aged about 1 ½ years, also looking to the occupation of respondent as Mason and his income on the date of passing order, I do not find any good ground to interfere with the order passed by learned court below. However, the amount of maintenance is ordered to be paid from the date of application.

16. In the result, the impugned order of learned Family Court dismissing application seeking maintenance of applicant No. 2 does not suffer from any infirmity and illegality. Accordingly, this Revision petition is allowed in part and it is ordered that the applicant No. 1 is entitled for maintenance @ of 1500/- per month from the date of application. The Neutral Citation 2024:CGHC:11238 impugned order is modified to the extent as indicated herein-above.

17. Record of case be sent back forthwith with a copy of this order for information and necessary action.

Sd/-

(Parth Prateem Sahu) Judge /pawan